

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

CHARLES HOLCOMBE, WENDY DAY,

Plaintiffs,

v.

CARRINGTON MORTGAGE SERVICES, LLC,

Defendant.

Case No.: CIVSB2521085

**[TENTATIVE] ORDER DENYING
MOTION FOR
RECONSIDERATION OF JUNE 4,
2026 ORDER FILED BY
PLAINTIFFS**

I. INTRODUCTION

On July 22, 2025, Plaintiffs Charles Holcombe and Wendy Day filed a complaint against Defendant Carrington Mortgage Services, LLC. The operative first amended complaint, filed July 31, 2025, alleges seven causes of action for: (1) quiet title; (2) declaratory relief; (3) RESPA violation; (4) SCRA violation; (5) TILA violation; (6) Rosenthal FDCPA violation; and (7) emotional distress.

Plaintiffs allege they are the owners of 1217 Drake Ridge Crescent in Redlands, California (the Property). Plaintiffs allege Defendant claims an interest as servicer/creditor under a purported second mortgage (Loan #7000341377), but lacks any recorded assignment or valid standing.

On September 25, 2025, Plaintiffs filed a request for entry of default on the Defendant, which the court clerk entered the same day.

On April 21, 2026, Defendant filed a motion to set aside or vacate the entry of default under Code of Civil Procedure section 473, subdivision (d). Plaintiffs opposed the motion. On June 4, 2026, the Court granted Defendant's motion, finding the default void based on defective service of the summons and first amended complaint. The Court also denied Plaintiffs' requests for sanctions and interim relief.

Now before the Court is Plaintiffs' motion for reconsideration of the June 4 order. Defendant opposes and Plaintiffs reply. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. APPLICABLE LAW

Code of Civil Procedure section 1008, subdivision (e), governs both renewal motions and motions for reconsideration, and states:

This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.

Under subdivision (a), a party seeking reconsideration is entitled to relief only upon submission of: (a) new or different facts, circumstances, or law; and (b) a declaration showing: (1) what application was made before, (2) when and to what judge; (3) what order or decisions were made; and (4) what new or different facts, circumstances, or law are claimed to be shown.

"Legislative findings state that the 1992 amendment was intended to clarify that no motion to reconsider may be heard unless it is based on new or different facts, circumstances, or law, and that the Legislature found it desirable 'to reduce the number of motions to reconsider

and renewals of previous motions heard by judges in this state.’ [Citations.]” (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1098-99 (*Le Francois*).)

Section 1008 is the exclusive means for a party to seek reconsideration of an order or renewal of a previous motion. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The California Supreme Court concluded that the requirements set forth for reconsideration of orders are jurisdictional as applied to the parties to civil litigation. (*Le Francois, supra*, 35 Cal.4th at p. 1104.) Unless the requirements of section 1008 are satisfied, the Court may reconsider a prior order only on its own motion, after giving the parties notice and an opportunity to be heard. (*Ibid.*)¹

III. PLAINTIFFS’ REQUEST FOR JUDICIAL NOTICE

Plaintiffs request judicial notice of: (1) the California Secretary of State business entity record Defendant submitted in support of its motion to set aside default; (2) Clerk of the Court correspondence addressed to Defendant at the Anaheim address; (3) filed proofs of service dated July 30, August 25, September 10, September 29, October 2, and October 10, 2025; and (4) filed USPS return receipts reflecting delivery to Defendant.

Under California Rules of Court, rule 3.1306(c), a party requesting judicial notice must provide the Court and the parties with a copy of the material, unless the material is already part of the file in the action, in which case the party may identify the material by its title and date of filing.

The Court DENIES the request as to Items 1, 2, and 4 because Plaintiffs failed to attach copies or identify the records by title and filing date as required by rule 3.1306(c).

¹ Section 1008, subdivision (a), requires a motion for reconsideration by a party affected by the order be made “within 10 days after service upon the party of written notice of entry of the order.” The motion is timely. Plaintiffs filed the motion on June 8, 2026, within 10 days of the Court’s June 4 order.

But the Court GRANTS the request as to Item 3. The referenced proofs of service are attached as Exhibit C to Holcombe's Supplemental Declaration and are judicially noticeable as Court records as to their existence and contents, but not the truth of disputed factual assertions contained therein. (Evid. Code, § 452, subd. (d); *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–69.)

IV. REQUEST TO STRIKE PLAINTIFFS' SUPPLEMENTAL PAPERS

On June 22, 2026, Plaintiffs filed a supplemental submission, a supplemental declaration from Charles Holcombe with exhibits, and a request for judicial notice. The supplemental materials include additional communications with registered process server George Sano and an amended proof of service concerning the August 25, 2025 service event. (Supp. Holcombe Decl. ¶¶ 9–19, Exhs. A–E.)

Defendant objects that the supplemental memorandum, when considered together with Plaintiffs' original memorandum, exceeds the 15-page limit imposed by California Rules of Court, rule 3.1113(d), and requests that the supplemental submission be stricken.

The Court DENIES Defendant's request to strike Plaintiffs' supplemental submission. Although Plaintiffs' combined memoranda exceed the applicable page limitation, an oversized memorandum is treated in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).) Plaintiffs' supplemental papers have been considered.

V. WHY THE MOTION FOR RECONSIDERATION SHOULD BE DENIED

Plaintiffs argue reconsideration is warranted because the June 4, 2026 order deemed their procedural objections waived and found the August 25, 2025 proof of service facially defective. Plaintiffs argue they expressly preserved those procedural objections throughout the briefing and hearing process. They also rely on subsequently obtained evidence from the process server and an amended proof of service to show that the Anaheim location was a business address and that

the papers were accepted by security/access-control personnel. Plaintiffs further contend the June 4 ruling is inconsistent with the Court's earlier October 20, 2025 finding that Defendant had been duly served.

The threshold issue is whether Plaintiffs have satisfied the requirements for reconsideration under Code of Civil Procedure section 1008. Plaintiffs have not made that showing. Plaintiffs' waiver argument rests on filings and circumstances that existed before the June 4 hearing and therefore does not present new or different matter under section 1008. (Holcombe Decl. ¶¶ 5–11.) The fact that the June 4 Order disclosed the Court's reasoning does not itself constitute a new or different circumstance warranting reconsideration.

Likewise, although Plaintiffs subsequently obtained additional statements from process server George Sano and an amended proof of service, the issues addressed by that evidence were already in dispute before the June 4 hearing. Defendant's motion challenged the August 25 proof based on the service location and the identity and capacity of the person who received the papers. Plaintiffs had also obtained and submitted a declaration from Sano before the June 4 hearing. (Holcombe Decl. ¶ 19.) Plaintiffs do not satisfactorily explain why the additional clarification from Sano could not have been obtained and presented before the motion was decided.²

Accordingly, Plaintiffs have not established grounds for reconsideration under section 1008. The Court therefore need not reach Plaintiffs' arguments concerning waiver, the validity of the August 25 service, or the requested clarification of the June 4 order.

² Plaintiffs alternatively invite the Court to reconsider the June 4 order on its own motion under *Le Francois*. That does not provide an alternative basis to grant Plaintiffs' motion. Unless section 1008 is satisfied, reconsideration must formally begin with the Court on its own motion. (*Le Francois, supra*, 35 Cal.4th at pp. 1107–09.) The Court DENIES Plaintiffs' request for the Court to reconsider the June 4 order on the Court's own motion.

VI. CONCLUSION

1. Plaintiffs' request for judicial notice is GRANTED as to Item 3 and DENIED as to Items 1, 2, and 4.

2. Plaintiffs Charles Holcombe and Wendy Day's motion for limited reconsideration of the June 4, 2026 order is DENIED. Plaintiffs have not demonstrated new or different facts, circumstances, or law, together with a satisfactory explanation for failing to present the asserted new matter before the original motion was decided.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court